



Instrument Drafting Guidance Note No. 1.3

Judging size and complexity for instrument projects

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Purpose of this document

1 The purpose of this document is to assist agencies in judging the anticipated size and complexity of instrument drafting projects:

- when preparing bids for ExCo instruments; and
- when seeking to engage OPC to draft non-ExCo instruments; and
- in working out timeframes for the development of instruments and the provision of initial drafting instructions.

ExCo instruments

2 The anticipated size and complexity of an ExCo instrument must be indicated in the ExCo instrument bid for the instrument (see the [ExCo instruments bid templates](#)) and in the drafting instructions for the instrument (see the [Drafting instructions template \(Instruments\)](#)).

Non-ExCo instruments

3 The anticipated size and complexity of a non-ExCo instrument that an agency is seeking to engage OPC to draft should be indicated in the drafting instructions (see the [Drafting instructions template \(Instruments\)](#)), or request for quote, for the instrument.

Timeframes

4 Agencies must take the anticipated size and complexity of an instrument into account in planning the timeframe for developing the instrument, and must ensure that initial instructions are provided to OPC in sufficient time to enable OPC and the instructors to complete the instrument by the desired deadline for finalisation or consultation.

5 The greater the complexity involved in an instrument, and the larger it is, the longer it will take to complete. Even small, simple instruments can take at least 6 weeks to be ready for finalisation or consultation. Moderately complex instruments can take at least 4 months to be ready for finalisation or consultation. If the instrument or policy is complex, or the instrument is large, it is likely to take between 6 and 18 months to complete the draft for finalisation or consultation.

Size

The following table sets out what the size categories cover.

Size	Anticipated number of pages
Small	up to 5
Medium	from 6 to 50
Large	more than 50

Some factors that may affect size are:

- the number of provisions to be drafted or amended;
- the number of consequential amendments required;
- the number of transitional, application or saving provisions required.

Complexity

The following table sets out the elements that determine which complexity category applies to an instrument (or to a discrete measure to be included in an instrument).

If the instrument (or the measure to be included in the instrument) has elements from more than one complexity category, the highest of those categories will apply to the instrument (or to the measure).

Example: If an instrument requires a small number of provisions to be drafted (low complexity) but raises significant legal issues (high complexity), the high complexity category will apply to the instrument.

Low	Moderate	High
requires a small number of provisions to be drafted/amended	requires a reasonable number of provisions to be drafted/amended or a smaller number of complex provisions to be drafted/amended	requires a large number of provisions to be drafted/amended or a smaller number of highly complex provisions to be drafted/amended or is replacing, or requires amendment of, an instrument that is long, detailed or complex
easy to identify what provisions/amendments are needed (some analysis or research may be required)	requires a reasonable amount of analysis or research to identify what provisions/amendments are needed	requires a significant amount of analysis or research to identify appropriate legislative solution
involves applying well-established or often used drafting precedents or practices	involves a degree of original or novel drafting or the careful application of drafting precedents and practices	involves a high degree of original or novel drafting or the careful application of drafting precedents and practices
raises no constitutional or legal issues and no political or other sensitivities	raises some constitutional or legal issues and/or some political or other sensitivities	raises significant constitutional or legal issues and/or significant political or other sensitivities
is clearly authorised by the enabling provision/s	raises some issues as to whether it is authorised by the enabling provision/s	raises significant issues as to whether it is authorised by the enabling provision/s
requires no, or only a small number of simple, consequential amendments	requires no, or only a reasonable number of, consequential amendments	requires a substantial number of consequential amendments
requires no, or only a small number of simple, transitional, application and saving provisions	requires no, or only a reasonable number of, transitional, application and saving provisions	requires a substantial number of transitional, application and saving provisions

Examples

The following table sets out some examples of instruments that fall within the different size and complexity categories.

Instrument	Size	Complexity
Private Health Insurance (Medical Devices and Human Tissue Products) Rules 2023	Large	High
Health Insurance Legislation Amendment (2023 Measures No. 1) Regulations 2023	Large	Moderate
National Health (Supply of Pharmaceutical Benefits—Under Co-payment Data and Claims for Payment) Amendment (General Co-payment) Rules 2022	Small	Moderate
National Greenhouse and Energy Reporting Amendment (2023 Measures No. 1) Regulations 2023	Small	Moderate
Energy Legislation Amendment (Information Requirements) Regulations 2023	Medium	High
Product Stewardship (Oil) Amendment Regulations 2023	Small	Low
Australian Immunisation Register Amendment (Japanese Encephalitis Virus) Rules 2022	Small	Low
Offshore Electricity Infrastructure Regulations 2022	Large	High
Parliamentary Business Resources Amendment (Office and Travel Expenses) Regulations 2025	Small	High
Ozone Protection and Synthetic Greenhouse Gas Management Amendment (2023 Measures No. 1) Regulations 2023	Medium	High